

22STCV02241 22STCV02241

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-15

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Case Number: 22STCV02241 Hearing Date: September 15, 2026 Dept: C

DANIEL

GONZALES vs PIH HEALTH HOSPITAL – WHITTIER, Case No. 22STCV02241

Defendant

BARLOW RESPIRATORY HOSPITAL applies ex parte for an order staying this action pending Plaintiff DANIEL GONZALES's appeal of the judgment dated April 8, 2026, following this Court's ruling granting Defendant PIH HEALTH HOSPITAL – WHITTIER's Motion for Summary Judgment. Plaintiff's

Notice of Appeal was lodged with the appellate court on September 9, 2026. Trial is currently scheduled for October 9, 2026. Barlow contends that it will be

denied a fair trial in the absence of PIH Health in so far as the issue of PIH Health's comparative negligence is embraced by the judgment now under appeal and subject to mandatory stay. (CCP § 916 (perfecting of appeal stays proceedings in the trial court upon the judgment appealed from or upon the matters embraced therein).) No opposition to stay has been filed by Plaintiff. Good cause having been shown,

this action is STAYED pending Plaintiff's appeal of the judgment entered in favor of PIH Health on April 8, 2026. The

Final Status Conference date of September 24, 2026 and the trial date of October 9, 2026 are ADVANCED and VACATED.

The Court sets a Status Conference on March 15, 2027 at 9:00 a.m. in Dept. SE-C. Moving party to give notice.